

25PR00170 Estate of Mary Jessie Aguilera

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-06-24

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Mary Jessie Aguilera

Case Number

25PR00170

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 06/24/2026 - 09:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances are required.

The following is noted for the Court at the hearing:

Proof of Service of Notice of Hearing (Form DE-120). The Proof of Service on file shows service to Diane M. Aguilera occurred on June 11, 2026, which 2 days short of the 15 day service requirement.

Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.)

Notice to Relevant State Entities. Notice of the petition must be served to any of the following state entities, if relevant:

Department of Health Services - If decedent, or the surviving spouse of decedent, received any state-paid healthcare benefits (i.e. Medi-Cal), notice must have been given to Department of Health Services not later than 90 days after letters issued (§9202, subd. (a))

Director of the California Victim Compensation and Government Claims Board - If an heir or beneficiary is or has previously been confined in CDCR facility, county or city jail, road camp, industrial farm, etc., notice must have been given to the Director of the California Victim Compensation and Government Claims Board not later than 90 days after letters issued (§ 9202, subd. (b))

State Board of Equalization - If decedent paid any taxes pursuant to Sales and Use Tax Law (Rev. & Tax. Code § 6487.1), Bradley-Burns Uniform Local Sales and Use Tax Law (Rev. & Tax. Code § 6487.1), Transactions and Use Tax Law (Rev. & Tax. Code § 6487.1), Motor Vehicle Fuel License Tax Law (Rev. & Tax. Code § 7675.1), Use Fuel Tax Law (Rev. & Tax. Code § 8782.1), Administration of Franchise and Income Tax Law (Rev. & Tax. Code § 19517), Cigarette Tax Law (Rev. & Tax. Code § 30207.1), and Alcoholic Beverage Tax Law (Rev. & Tax. Code § 32272.1), notice must have been given to the State Board of Equalization.

Employment Development Department - If decedent owed unemployment insurance, notice must have been given to the Employment Development Department (Unemp. Ins. Code, § 1090)

Department of State Hospitals - If decedent, or his spouse, father, mother, or child, has been a patient in a state hospital preceding the date of decedent's death, notice must have been given to the Department of State Hospitals (Welf. & Inst. Code, § 7277.1)

Attorney General - If estate may involve a devise to a charitable trust without a designated trustee, or a devise for charitable purposes without an identified devisee, notice must be served on the Attorney General (Prob. Code, § 8111)

It is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Denise M. Hippach

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